



Public Records Act Procedures

ROLES AND RESPONSIBILITIES

Department/Division Lead PRA Coordinator – Staff member identified by the Department to manage and respond to PRA requests. Often times, also the designated Records Coordinator under the City's Records Management Program.

Responsible for:

- Understanding the requirements of the Public Records Act;
- Receiving and interpreting the requests in a timely manner;
- Seeking clarification from the requestor if needed;
- Identifying where records are held (paper, off-site, electronic, storage) including if other departments have responsive records;
- Tracking and reviewing the responses for completeness;
- Identifying records that need additional legal review;
- Uploading records to GovQA;
- Communicating with the requestor;
- Closing out the request in a timely manner.

City Attorney Staff

Responsible for:

- Providing legal advice on requests;
- Assisting in identifying any records that are exempt from the Public Records Act;
- Assisting with identifying records to be redacted as needed;
- Training staff on the legal requirements of the PRA.

City Clerk Staff

Responsible for:

- Assigning PRAs to appropriate Department(s) coordinator in a timely manner;
- Entering PRA into GovQA if the requestor has submitted the request in an alternative method (i.e. letter, verbal, etc.). Provide customer facing assistance for Public Records Act Requests.
- Overseeing the City's PRA program;
- Managing the GOVQA software and alerts management (traffic cop);
- Training staff on GOVQA;
- Assisting with coordination on complicated or multi-department PRAs;
- Assisting with managing communication requests in forming the query and uploading when complete;
- Producing city-wide metrics on the City's overall responsiveness to all PRAs.

Information Technology (IT) Systems and Networks Manager

Responsible for:

- Writing and performing the query for responsive electronic records based on information provided by department staff assigned to a PRA;
- Uploading records into Digital Discovery Tool (currently Exterro) and assigns the appropriate reviewer;
- Assisting with training, support, account and software management on Exterro and other software that stores electronic data.

PROCEDURES

The legal requirement is to respond within 10 days as to whether records will be disclosed. While the Public Records Act requires non-exempt records to be made available to the requestor “promptly,” the best practice is to process the request and disclose non-exempt records within 10 days of the request, and the procedures identified below are written accordingly.

This may not always be possible with requests for voluminous records, in which case it is important for the Department Lead PRA Coordinator to coordinate with the City Clerk’s Office and City Attorney’s Office to ensure that a consistent rolling production of records takes place.

Public Records Act (PRA) requests should always be treated as a priority for initial evaluation to:

- 1) ensure it is a request for records and not just a request for information
- 2) make sure it is in the right department/division; and
- 3) assess the degree of complexity and devise an initial response strategy, based on the following factors:
 - number of departments involved;
 - whether communications (emails) are requested;
 - involves a voluminous amount of responsive documents;
 - requires legal review;
 - whether IT will need to retrieve records;
 - whether a 14-day extension will likely be requested.

Based on this initial evaluation the following steps should be taken:

Day 1: the day the request is received

- ☐ Department Lead PRA Coordinators reads the request thoroughly and makes sure they understand the scope and then begin implementing procedures in order listed. If the request is unclear, seek CLARIFICATION from the requestor.
- ☐ Department Lead PRA Coordinator shall flag if the PRA appears overly broad and potentially leading to a burdensome level of records. City Clerk’s Office and City Attorney’s Office staff can assist with recommending options to narrow the scope for the requester, to assist with providing the requester with the records they desire in a timely manner, understanding that the requestor may choose to not limit the scope of the original request for records.
- ☐ Department Lead PRA Coordinator ensures that the request is assigned to the right department. If it is a multi-department request, the department with the most responsive records will usually be the lead; and the lead department will assign activities to the other departments for their responsive records. In some multiple department cases, the City Clerk may assist and lead. In

some cases, it is beneficial to have a team meeting about the request with all of the involved departments to make sure everyone knows their roles and the deadlines.

If the requestor is asking for electronic **COMMUNICATION** (email, texts, chats) and/or any electronic records:

- ☐ Immediately contact the City Clerk.
- ☐ With the Lead PRA Coordinator, this team will evaluate and construct the proposed search terms for IT to use to process the request. In Communication requests, identify who is likely to have responsive records (they may be called out by name in the request), dates, and keyword search terms. For other electronic data, determine which systems contain the data and evaluate if IT assistance is needed to produce it.
- ☐ The Department PRA lead must get written authorization from the City Attorney or City Clerk to conduct the email search through IT Department System and Networks Manager. For City Attorney communications, written authorization must be provided by the City Attorney.
- ☐ Once approval is received and search terms are confirmed, IT conducts the search and returns responsive records via the digital discovery tool (currently Exterro). This needs to happen as quickly as possible so time to review the records can be built into individual work programs and managed.
- ☐ Once it is identified who is likely to have responsive records, ask each identified official or staff member to search their own devices for texts or personal emails responsive records (these are records that did not go through the City's servers, email or Teams system). Ask them to respond via email with any responsive records or to state that they have no responsive records. Keep these emails in GovQA, marked as 'internal' as validation that the search was conducted.
 - If active litigation is ongoing in relation to the Public Records Request, an affidavit of completion of search for staff's own devices, texts, or personal emails for responsive records must be completed.

Day 1 through 10: processing the request

- ☐ Contact staff who might have responsive documents and load the documents into GovQA.
- ☐ For communication requests, the Department PRA lead staff member(s) do the initial review in Exterro and mark emails and affiliated documents as:
 - Responsive "Res" – records that meet the request.
 - Nonresponsive "Non" – records that do not meet the request.
 - Privileged "Priv" – may have privileged information and require attorney review before release.
 - Hot – sensitive communication an attorney / department head should be made aware of before release, may require spot redaction.
- ☐ The Department PRA lead needs to manage the review of records in the digital discovery system to ensure the attorneys have sufficient time to review potential privileged communication that

needs to be redacted. An attorney must be involved in this step and will either complete this step or direct this effort. Note that a rolling production of records is sometimes appropriate for a voluminous request for records.

- ☐ Once City Attorney staff have reviewed, alert the City Clerk that items are ready to be downloaded from the digital discovery system and the City Clerk will download and work with the individual attorney and/or lead Department staff to ensure the correct communication is going out to the requestor.

By Day 10: Request an extension

- ☐ If the PRA lead thinks they may need an extension, they must consult with the City Attorney's office to see if the statute allows an extension in this circumstance.

Best Practices

- Notify involved staff right away about PRA request that may involve them or their records; this will give staff adequate time to plan their own workload.
- Seek advice from City Attorney or City Clerk early in the process in order to not hold up a request.
- Keep the City Attorney staff informed of progress on requests they are involved in.
- Reach out to the City Clerk for training and re-training of GovQA whenever it is needed.